TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MARCH 31, 2025
MINUTES

Staff Report

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Molly Hall.
Absent: Aaron Butner
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Branch moved for approval of the agenda. Ms. Hall seconded the motion. All in favor.

B. Approval of Minutes

Mr. Branch moved for approval of the minutes. Ms. Hall seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-06-25, 683 Linns Point, TMS# 559-02-00-233, Request for relief from §156.225(C) to allow the removal of 36'' Historic Live Oak.**

Ms. Stevens recused herself due to a conflict of interest.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Phil Spitz, representative for Grantham Building Group, reviewed the request with the Board.

- Ms. Michele Stress, 545 Veranda View, asked that the request be denied. She suggested that the trees were on the lot when the property was purchased, so a hardship should not be considered.

- Mr. David Quick, 1502 Village Square, asked for denial of the request as it is a historic tree and should be preserved for the tree canopy within the Town. He suggested that a reasonable home does not always mean a large home. He suggested that the mitigation cost is undervalued and should be restudied.

Mr. Spitz rebutted that the home is proposed to be 2,600 square feet, while the surrounding homes are 4,000 square feet or larger.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that there are no hardships as there are no extraordinary or exceptional conditions as it is similar to other surrounding lots, there are other lots that have trees on the lot; the conditions apply to other lots in the vicinity; denial would not prevent utilization of the property; there is no proof that approval of the variance would not be a detriment, as the tree provides necessary oxygenation for the neighborhood. Mr. Wood seconded the motion. Motion failed on a 2 to 2 vote with Mr. Barrow and Mr. Wood in favor; Mr. Branch and Ms. Hall opposed, and Ms. Stevens abstaining.*

- *Mr. Branch moved for deferral to the next meeting. Ms. Hall seconded the motion. All in favor.*

2. Case V-07-25, 1248 Waterfront Drive, TMS# 558-10-00-062, Request for relief from §156.225(C) to allow the removal of a 41.5'' Historic Live Oak.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jerry Bulcher, owner, reviewed the request with the Board.

- Mr. David Quick, 1502 Village Square, suggested that his understanding was that the arborist report indicated that it was in stable condition and did not pose a hazard. He suggested that the tree has withstood several storms over the years. He asked that the request be denied.

- Ms. Michele Stress, 545 Veranda View, asked that the request be denied. She suggested that not allowing the tree to be removed would not prevent the utilization of the home. She suggested that the tree does not appear to be in the condition noted by the applicant and the arborist.

- Ms. Ann Bulcher suggested that the lives of the owners and the neighbors should take precedence over keeping the tree. She stated that she fears for her safety because the tree could come down and cause harm to the home and to life.

- Mr. Bulcher rebutted that the arborist report indicates that the tree is at considerable risk and should be removed.

Mr. Swalhah reviewed the inspection process when a tree removal request is made to the Town with the Board.

- Mr. Wood closed public comment.

- *Mr. Branch moved for deferral so the Town arborist can re-inspect the tree and be present at the next meeting. Ms. Hall seconded the motion.*

Ms. Hall called for a point of order and asked if the Town can defer this item for the arborist report to be substantiated. Mr. Ward answered that the Board can defer the item for additional information. He noted that typically a decision is rendered based on the information presented by the applicant and not third-party information; however, if there is a dispute on the health of the tree, that additional information could be requested.

- *Mr. Wood called for a vote on the motion. Motion passed on a 3 to 2 vote with Mr. Branch, Ms. Hall, and Ms. Wood in favor; Mr. Barrow and Ms. Stephens opposed.*

3. Case V-08-25, 704 Remley Lane, TMS# 514-05-00-058, Request for relief from §156.303(Table) to allow a 6' encroachment into the front-yard setback. The ordinance requires a front-yard setback of 30' for this parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Adam Marlin, owner, reviewed the request with the Board.

- *Mr. Branch moved for approval for submittal of a letter from the neighbor. Ms. Hall seconded the motion. All in favor.*

- There being no comments, Mr. Wood closed public comment.

- *Mr. Barrow moved for denial with the findings that there is no proof that denial would prohibit or unreasonably restrict the utilization of the property; there are extraordinary conditions due to the marsh and buffer and the situation of the property; there are other properties in the vicinity that have similar circumstances; and approval would not be a detriment to the neighborhood. Being that criteria all four criteria for a variance, particularly items #2 and #3 have not been met, the request should be denied. Mr. Branch seconded the motion. Motion passed on a 3 to 2 vote with Mr. Barrow, Mr. Branch, and Mr. Wood in favor; Ms. Stevens and Ms. Hall opposed.*

4. Case V-09-25, 675 Adluh, TMS# 562-02-00-102, Request for relief from §156.225(C) to allow the removal of two Historic Cedar Trees.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Wood administered the oath to Mr. Jensen.

- Mr. Ron Jensen, architect for the applicant, asked for a deferral to the next meeting.

- Mr. Wood closed public comment.

- *Mr. Branch moved to accept the deferral request from the applicant to the next meeting. Ms. Hall seconded the motion. Motion carried on a 4 to 1 vote with Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Barrow opposed.*

There being no further business, the meeting adjourned at 7:29 pm.

Submitted by,
L. Lynes
BOZA03312025